

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST

COMPLAINANT,

v.

APS EAST COAST, INC.

RESPONDENT.

**RESPONDENT’S RESPONSE TO COMPLAINANTS’
MOTION TO COMPEL DOCUMENT REQUESTS**

I. INTRODUCTION

Pursuant to 46 CFR §502.150.(a)(3), §502.69(f), and §502.71(b), Respondent APS East Coast, Inc.’s (“APS”) hereby responds to Complainants’ Motion to Compel Document Requests.

II. RESPONDENT’S EFFORTS IN RESPONSE TO DISCOVERY REQUESTS

Respondent has fully complied with its discovery obligations and has continued, unprompted, to address Complainants’ concerns and clarified requests. As an example, Respondent notes that in Complainants’ Background section, they assert that Respondent provided redacted documents despite a Confidentiality Stipulation having been in place. While correct, the redactions were added prior to the Confidentiality Stipulation being in place between

the parties in an effort to be as expeditious as possible with production. Accordingly, Respondent notes that unredacted copies were provided to Complainants prior to the filing of Complainants' Motion to Compel Document Requests.

With respect to its discovery obligations, since becoming aware of the dispute leading to the instant proceeding, Respondent has preserved the full extent of its documentation in connection with its preferred stevedoring arrangement at its private terminals in Baltimore.

Respondent conducted a search of its records upon receiving the subject Complaint and renewed its search again in September in anticipation of Complainants' discovery requests. Shortly after receipt of Complainants' discovery requests, on October 2, 2023, Respondent reviewed the discovery requests and the full extent of information requested. The following week, Respondent held an internal meeting to review document and discovery responses identified. The review of internal records continued through the following week.

As noted in the responses to Complainants' discovery requests, the point person in charge of Respondent's efforts in collecting and pulling information in response to Complainants' requests was Ben Buben, Chief Operating Officer of AMPORTS, Inc. The persons involved in the conception, planning, and implementation of the preferred stevedore program were Ben Buben, Jacob Brown (APS East Coast Inc., Treasurer and Secretary), and Steve Taylor (Chief Executive Officer at AMPORTS, Inc.). Based on the input of the three persons involved, Respondent concluded that Mr. Buben was the senior company official with the most direct and complete knowledge of the information, correspondence, and documentation regarding the program, and therefore the appropriate individual to oversee the production of responsive documentation. Respondent also noted that because Mr. Buben had oversight of the program, he would have been included on all responsive correspondence concerning the program.

Nevertheless, in the interests of ensuring a full response, Respondent also directed all involved persons to conduct their own independent search for responsive information generally, and also in response to specific counsel requests.

As part of Respondent's search for responsive documents, Mr. Buben engaged Respondent's Information Technologies ("IT") department to assist in searching older emails and files. Upon information and belief, Mr. Buben directed searches to include various keywords, including "Ceres," "Ports America," "MTCE," "Stevedore," and "Stevedoring" (and misspelled variations of those key words). The search also included a search for communications with third persons known to Respondent to be relevant to the program, including Mr. Doug Hansen of Ceres.

Mr. Buben is no longer employed by Respondent, and he was not available during the pendency of Complainant's pending motion to confirm the earlier information noted above. However, upon information and belief, Mr. Buben personally reviewed the discovery requests from Complainants on his own and with counsel to develop the key words identified above.

Mr. Buben also directed Respondent's accounting department and Terminal Manager (George Molyneaux) to provide issued terminal access invoices, initial invoice submission correspondence, any and all responses to those invoice communications, and any and all follow-up emails. In preparing Respondent's discovery responses, Counsel deemed those invoices and related correspondence as duplicative of documentation already within Complainants' possession, or irrelevant to Complainants' requests, and responded accordingly.

Since the departure of Mr. Buben, Mr. Vee Kachroo (current Chief Executive Officer of AMPORTS, Inc.), Mr. Brown, and Mr. Taylor conducted supplemental searches for additional

responsive documents. Those searches have identified one potentially responsive set of documents which are being processed for production.

As Counsel for Respondent has advised Counsel for Ports America, Respondent's corporate culture was, during the relevant time period, more reliant upon direct telephonic, videoconference, and face -to-face communications, and less reliant upon emails, correspondence and similar documentation, than might be expected in other companies, with a large majority of communication and decision-making done by phone and through person-to-person meetings.

Respondent appreciates Complainant's concern regarding the perceived lack of documentation and take them exceedingly seriously. Accordingly, subsequent to Counsel's Meet and Confer meeting on December 6th, Respondent has been engaged in additional searches for any overlooked material, with those searches having identified one potentially responsive set of materials which are being processed for production.

III. RESPONDENT RESPONSES TO SPECIFIC PRODUCTION REQUESTS

Request for Production No. 4

Complainants point to their own production as evidence of additional information regarding access fee communications that was not produced by Respondent, however Respondent notes that was the basis of one of the objections in its response to the request – namely, that the relevant documents were already in Complainants' possession, custody or control. Of the documents noted as examples, one (PA1857) suggests that AMPORTS sent invoices directly to MOL and that such correspondence and invoices were missing from Respondent's production. This is a fundamental misunderstanding of the documents that Complainant themselves produced. It is not necessary to elaborate on the content of the

documents referenced beyond stating that the invoices referenced were not sent by Respondent, but rather Ports America, and were not documents or correspondence that Respondent has ever had in its possession, custody, or control. This representative example is also referenced in Request for Production No. 7.

Request for Production No. 11

During Counsel's December 6th meet and confer, the parties discussed Request for Production No. 11 and in particular the OEM (original equipment manufacturer) processing contracts and their relevance to the proceedings. Counsel for Respondent agreed that such terminal access provisions of the OEM contracts were relevant and that it would investigate and revert. Counsel for Complainants' agreed that such agreements are of a sensitive nature and narrowed its request to only relevant terminal access provisions of the requested agreements.

The parties discussed this again during the December 18th discovery conference and Counsel for Respondent confirmed that it was investigating this request and would revert regarding any relevant terminal access provisions.

To elaborate on the supplemental response, Respondent has continued to pursue the requested documents and was able to provide them to Counsel over the holidays. Counsel for Respondent are diligently reviewing and will revert to Counsel for Complainants very shortly, as expressed in its supplemental response to Complainants' counsel on December 26, 2023.

IV. METADATA

Complainant states that Respondent "did not object to the requested form of production, either with respect to native production, the request for metadata, or the preferential request for production in load file format." This is not accurate.

In its responses to Complainants' discovery requests, Respondent included several General Objections which related to Complainants' unduly burdensome requests with respect to metadata and ESI by stating in its Response to Complainants' Interrogatories:

1. Respondent objects to Complainants' instructions to the extent they are more onerous and burdensome than those contained in the Code of Federal Regulations under 46 C.F.R. § 502.141 or § 502.145.

7. These General Objections are incorporated by reference into each and every response below to the extent applicable.

Respondent included similar General Objections in its responses to Complainants' Request for Production:

2. Respondent objects to Complainants' Requests to the extent they are more onerous, burdensome, or impose obligations beyond those contained in the Code of Federal Regulations under 46 C.F.R. § 502.141 or § 502.146. Respondent will comply with the Regulations in responding to these Requests.

7. These general objections are incorporated by reference into each and every response below to the extent applicable.

Complainants have requested specific load type files, however neither Respondent nor Respondent's counsel use such a platform and consider Complainants' demand that such information be produced in the requested format to be unduly burdensome and beyond that which is required under the regulations. Respondent asserts that the documentation provided as PDFs conforms with 46 C.F.R. §502.146 (b)(2)(v) as reasonably usable and, having already been provided, such electronically stored information need not be produced in another form.

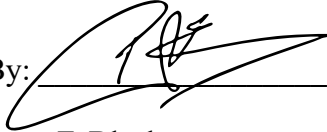
V. CONCLUSION

As more fully explained above, Respondent has diligently and repeatedly searched its records for the requested information with numerous persons participating in the search and collection effort, has continued to work with Counsel for Complainants to provide any outstanding material, and has provided documentation in a reasonably usable format.

For the foregoing reasons, Respondent APS East Coast, Inc. respectfully requests that Complainants' Motion to Compel Document Requests be denied.

Dated: January 3, 2024

Respectfully Submitted,

By: _____

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

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Dated: January 3, 2024

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